



File No.: EXP202317578 (PS/00546/2023)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
BACKGROUND

FIRST: On 26/09/23, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against the entity LOCAL VERTICALS, S.L. with CIF: B02789808, owner of the website <https://www.motorpasion.com> (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

In his complaint, he states that, after the long time elapsed since his first complaint to the AEPD, the website in question still does not display any legal notice with the information that should appear therein.

SECOND: On 28/11/23, the Inspection Subdirectorate of the Spanish Agency for Data Protection carried out the following diligence regarding the possibility of obtaining personal data on the website in question and the "Privacy Policy" displayed in the personal data collection form:

Upon entering the website, it is verified that personal data (email and user name) can be entered in the registration form that can be accessed through the dropdown menu located at the top left. Before being able to submit the form and register, one must click on the option “_I have read and accepted the <>.”

Personal data can also be entered through the link <> → <>, located at the top left of the main page, where personal data such as name and email can be entered.

If one clicks on the option <> located in the user registration form, the website displays a new page, ***URL.1 where the following information appears, among others: “(…)”

“Privacy Policy: At ***COMPANY.1 we are aware of the importance of privacy and data protection for our users. For this reason, at ***COMPANY.1 we have conducted an analysis of the processes carried out as well as the inherent risks to them for

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establish policies and measures aimed at protecting the personal information that we may collect from our users. (...)”

THIRD: On 13/03/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the entity LOCAL VERTICALS, S.L. with CIF: B02789808, owner of the website, <https://www.motorpasion.com>, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 13 of the RGPD, classified under Article 83.5 of the RGPD, for failing to provide the user, at the time of collecting their personal data, with all the necessary information regarding the processing of such data.

The initiation agreement was based on the fact that during the verification carried out and documented by this Agency on the website <https://www.motorpasion.com>, it was confirmed that personal data of users could be entered through the existing form in the dropdown menu located at the top left <> → <>, which required clicking on the option “_I have read and accepted the <>” before being able to submit the registration form. However, if the user accessed the information available in said “Privacy Policy” through the marked link, the website redirected the user to a new page, ***URL.1, which had nothing to do with the website in question, as it belonged to another different website whose owner was a legal entity that had no relation to the respondent: ***URL.2, and whose owner was not the same legal

entity, but “***COMPANY.1”.

FOURTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, on 21/03/24, a written statement of allegations was received from the respondent, in which it requests the dismissal of the proceedings, arguing that the initiation agreement of the sanctioning procedure considered that Article 13 of the RGPD was infringed based on the assertion that there was no type of information regarding the processing of personal data obtained in its forms nor a link redirecting the user to the “Privacy Policy.” However, this was not true as there is a link to the privacy policy on the “home” page of the website, available within the menu accessible at all times by clicking on the horizontal bars located on the left side of the website, pointing to <https://www.motorpasion.com/pages/aviso-legal>.

FIFTH: On 03/04/24, a resolution proposal was made suggesting that the Director of the AEPD sanction the respondent for violating the provisions established in Article 13 of the RGPD, classified under Article 83.5.a) of the RGPD, with a fine of 10,000 euros (ten thousand euros).

The resolution proposal of the sanctioning procedure was based on the ratification that during the verification carried out and documented by this Agency on 09/01/24 on the website <https://www.motorpasion.com>, it was confirmed that on said page, personal data of users could be entered through the existing form; that before the user could submit the form with their personal data and register on the website, they had to click on the option: “_I have read and accepted the <>,” but in the “Privacy and Participation Policy” that the user was obliged to read before submitting the form, information was provided that did not correspond to the actual owner of the website as the link redirected the user to the “Privacy Policy” of another website.

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different whose holder had no relationship with the respondent as it was:

“***COMPANY.1”

It was also argued in drafting the resolution proposal that on the page where personal data was collected, that is, in the registration form, no information was provided regarding the actual data controller, nor was there any other link that redirected the user to the true “Privacy Policy” or “Legal Notice” of the website where such information could be obtained, as established by the regulation. There was also no permanent link on the different web pages that the user could visit that would allow access to the “Privacy Policy” information at any time, even though such a link might exist indirectly at a second level. That is, on the website's “home” page, through the menu located at the top right and by clicking on the horizontal bars located on the left of that menu, which point to the link <https://www.motorpasion.com/pages/aviso-legal>.

SIXTH: Notified of the resolution proposal in accordance with the rules established in the LPACAP, on 08/04/24, the respondent submitted a written statement of allegations to said proposal in which it stated the following:

“The initiation agreement of the sanctioning procedure considered that an infringement of Article 13 of the GDPR may have occurred because, according to the SECOND background of said agreement, ‘there is no type of information regarding the processing of personal data obtained in its forms. There is also no link that redirects the user to the “Privacy Policy.”’

To substantiate this point, the file contains (A 1, pg. 76) a screenshot taken by the instructor of the footer of the website subject to the sanction proposal, where indeed no link to the privacy policy appears. At this point, the instructor reiterates (page 75 of the file) that ‘there is no link on the main page of the website that allows the user to access the Privacy Policy of the website.’

The initiation agreement of the sanctioning procedure was motivated by the total lack of information regarding the privacy policy, which could indeed be considered an infringement of Article 13 of the GDPR.

Notwithstanding the above, in the allegations phase, it was evidenced that there was indeed a link to the privacy policy of the website, located in the same menu where the link for a user to register can be

found.

However, the resolution proposal that has now been notified seems to modify the sanctioning motivation of the initiation agreement, and the sanction is proposed because the link that exists in the registration form, for reasons unknown to this party, links to the privacy policy of the previous company that managed the portal subject to sanction.

This circumstance was corrected after the sanctioning procedure PS/00086/2023, which sanctioned exactly these same facts. But by

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reasons that this party does not acknowledge and has not been able to reproduce, at the moment when the instructor entered the website and clicked on that link in the registration form, it continued to redirect to the old link.

But the truth is that, regardless of whether the link in the registration form might have had some navigation issue for the instructor, there is indeed (contrary to what this Agency claims) information about the data controller through a permanent link in the website menu. The same menu that contains a link to the registration form. In fact, at some point the instructor must have accessed the privacy policy of Local Vertical because in the administrative file, page 37, it appears as “Evidence collected by the AEPD” the privacy policy of the website. Therefore, this party cannot share the assertions made in this procedure regarding the non-existence of its own privacy policy.

It also cannot agree that it is considered as PROVEN FACT in the resolution proposal that “the website did not provide information regarding the actual data controller, nor was there any direct link that redirected the user to the ‘Privacy Policy’ or ‘Legal Notice’ where such information could be obtained,” since precisely from the allegations to the initiation agreement it was established that such a privacy policy did exist and that there was indeed a permanent link in the website menu.

In short, Article 13 of the GDPR requires informing a series of elements before collecting any personal data, and such information was previously available in the privacy policy of the website, so in any case, it cannot be considered that Article 13 of the GDPR has been violated.

It is possible that the instructor, at the time of visiting the website and not finding the links in the footer, came to the erroneous conclusion that there was no link to the privacy policy anywhere on the website, as he stated in the initiation agreement.

SECOND.- ABSENCE OF THE ELEMENT OF CULPABILITY

The principle of culpability also governs in matters of administrative offenses (see the Judgment of the Constitutional Court 246/1991 of December 19 and 76/1990 of April 26); therefore, to the extent that the sanction for the offense is one of the manifestations of the state's *ius puniendi*, there is a constitutional requirement that “objective liability” cannot be imposed, as is the case here. This requirement of culpability in the field of administrative offenses is reiterated *ad nauseam* by the jurisprudence of the Supreme Court.

Thus, the Supreme Court rulings of May 12 (rec. 388/1994) and May 19, 1998, Section Six, affirm that in the sanctioning field “any attempt to construct objective liability is prohibited” and that “in the field of the...

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Administrative responsibility requires not only that the conduct be unlawful and typical, but also that it be culpable, that is, a consequence of an action or omission attributable to its author due to malice or recklessness, negligence, or inexcusable ignorance (...) that is to say, as a requirement derived from Article 25.1 of the Constitution, no one can be condemned or sanctioned except for acts that can be attributed to them by way of intent or fault (principle of culpability).

Consequently, culpability must be assessed, in administrative offenses, based on the voluntariness of the infringing subject in the unlawful action or omission. Therefore, the principle of culpability constitutes a basic element when qualifying a person's conduct as sanctionable; that is, it is an essential element in any administrative offense (Supreme Court rulings, among others, of February 28, 1996, and July 6, 1995).

In summary, and in the words of the Supreme Court, culpability must be as demonstrated as the active or omissive conduct that is sanctioned.

In this context, Article 28 of Law 40/2015 on the Legal Regime of the Public Sector states: "Only individuals and legal entities... who are responsible for acts constituting an administrative offense can be sanctioned."

The aforementioned ruling of the Constitutional Court 246/1991 of December 19 has declared that: "[...] while it is true that this Constitutional Court has repeatedly stated that the guiding principles of criminal law are applicable, with certain nuances, to sanctioning administrative law, given that both are manifestations of the punitive order of the State (STC 18/1987 among others), it is equally true that we have also referred to the caution with which it is advisable to operate when transferring constitutional guarantees derived from criminal law to sanctioning administrative law. This operation cannot be done automatically, because the application of such guarantees to administrative procedures is only possible to the extent that they are compatible with its nature (STC 22/1990). Specifically, regarding fault, this Court has declared that, indeed, the Spanish Constitution undoubtedly enshrines the principle of culpability as a basic structural principle of Criminal Law and has added that, however, the constitutional enshrinement of this principle does not imply in any way that the Constitution has turned a specific way of understanding it into law (STC 150/1991).

This principle of culpability governs in matters of administrative offenses, as the sanction for such an offense is one of the manifestations of the State's "ius puniendi"; an objective or faultless liability regime is inadmissible in our legal system (STC 76/1990)."

Also in relation to the element of culpability, it is stated in the Supreme Court ruling of July 6, 2010: "[...] Culpability should be understood as the personal judgment of reproach directed at the author (by...

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action or omission) of a typical and unlawful act; this implies and requires that the author be the cause of the action or omission that constitutes the unlawful conduct ---as an author, accomplice, or accessory---; that it be imputable, without circumstances that alter their capacity to act; and that it be culpable, that is, that they acted with awareness and voluntariness, either intentionally or negligently [...]. More recently, in the Judgment of the High Court of January 21, 2021 - appeal No. 398/2019, it recalls that: "[...] The jurisprudence of the Supreme Court, in line with that of the Constitutional Court, has established that the sanctioning power of the Administration, as a manifestation of the State's ius puniendi, is governed by the principles of criminal law, with the principle of culpability being a basic structural principle, incompatible with a regime of objective responsibility, without fault. This so-called 'principle of culpability' was previously provided for in Article 130.1 of the repealed Law 30/1992, which stated that 'only those responsible for acts constituting administrative infractions, even by mere non-compliance, can be sanctioned.' Thus, reiterated jurisprudence - analyzing the literal wording of the norm - ruled out that the aforementioned Article 130 established a merely objective responsibility. The jurisprudence of the Supreme Court (judgments of December 12, 1995, May 14, 1999, etc.) and the doctrine of the Constitutional Court, addressing the application of criminal principles to the sanctioning administrative sphere, indicated that this 'mere non-compliance' could not be understood as the admission of objective responsibility in sanctioning administrative law, as the existence of intent or fault is required, since the principles of criminal law are - with certain nuances applicable to the sanctioning administrative sphere [...].

Consequently, the assessment of culpability in the conduct of the infringing subject is a requirement that arises directly from the constitutional principles of legal certainty and legality regarding the exercise of sanctioning powers of any nature. The principle of culpability constitutes a basic element when qualifying a person's conduct as sanctionable, that is, it is an essential element in any administrative offense, and it is a principle that must operate when analyzing the conduct determining

the infraction.

Established the existing jurisprudence applicable to the case, it is necessary to point out that following the jurisprudential doctrine, it must be reflected in the sanctioning file not only the typical and unlawful act but also the culpability of the subject, that is, it must be proven that the subject acted with awareness and voluntariness, failing to meet a required duty of diligence.

Well, in this case, such an extreme has not been proven. In fact, it would make little sense that having been previously sanctioned for the same act, it was not immediately corrected once it was established that the links to the privacy policy of motorpasion.com did not point to the correct address.

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Indeed, within the framework of the sanctioning procedure PS/00086/2023, this circumstance has already been corrected and the links on the website pointed to the correct address. And this is without questioning that the instructor, when accessing the registration form on the website on 09/01/24, was redirected to the link that existed within the framework of PS/00086/2023. It is possible that at that moment a cached previous version from his browser was loaded.

However, there is no doubt that at some point he must have accessed the correct privacy policy through one of the existing links on motorpasion.com because, as indicated, there is evidence collected by the AEPD itself, so it cannot be appreciated that there is an element of culpability in the conduct of LOCAL VERTICALS since it is indeed informing about what is prescribed in Article 13 of the GDPR. There is no intention to conceal such information or to fail to inform.

THIRD.- PREJUDICIALITY.

The complaint filed by the complainant concerned the use of cookies and the absence of legal notice. This is indicated by the complainant: “after the long time that has passed since my first complaint, the website continues to store cookies, and there is no legal notice, with the information that should appear.”

It seems clear that the complainant was complaining about the use of cookies and the lack of relevant information regarding cookies, which she calls “legal notice.” As a result of this complaint, PS/00040/2024 was processed, in which a fine of 10,000 euros was proposed for using cookies without consent and for not having the relevant legal information regarding cookies, which is what she claimed in her writing.

However, the AEPD, based on the same complaint, has initiated this new procedure PS/00546/2023 with a different object. It is no longer a matter of seeing whether the cookies have the corresponding legal information (which is what was claimed) but whether the collection of data in a registration form on the website complies with the stipulations of Article 13 of the GDPR.

In other words, from the same complaint, the AEPD initiates two distinct sanctioning procedures with different objects and facts, with this second procedure PS/546/23 diverging from the facts of the initial complaint.

In this regard, the Order of June 26, 2023, from the Supreme Court, contentious chamber, admits for processing a cassation appeal that has a direct impact on the resolution of this sanctioning procedure. The Supreme Court has declared in that Order that the issue presenting objective cassational interest for the formation of jurisprudence consists of interpreting Articles 57 and 58.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, and 63, 64, and 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights, in order to determine whether, upon filing a complaint with the Spanish Agency for Data Protection, its actions are linked to the content of that complaint, specifically to the facts subject to the complaint and their fit and classification in the types described in the regulation, or whether it can process and resolve the sanctioning procedure independently of the causes and facts on which the complaints are based. Given that we find ourselves in that situation, where this sanctioning procedure has become detached from the initial complaint, and there is a judicial procedure that could influence it, the deadline for resolving this sanctioning procedure must be suspended until the ruling of the Supreme Court.

FOURTH.- GRADUATION OF THE SANCTION

In view of the fact that the website motorpasion.com did indeed have the corresponding privacy policy, with the content of Article 13 of the GDPR, and that the error in the link in the registration form could be due to circumstances not attributable to this party, it will be requested, subsidiarily, that the sanction be replaced by a warning or, failing that, that the sanction be reduced to €100.

In light of the above, I REQUEST

FIRST.- That in consideration of what is stated in the third allegation, the suspension of the deadline for resolving the sanctioning procedure until the ruling of the Supreme Court be agreed.

SECOND.- That in the event that this Agency decides to continue the procedure, the sanctioning procedure be archived based on what is stated in the first and second allegations.

THIRD.- That in the event that this Agency dismisses the reasons for the archive, the sanction be replaced by a warning or, failing that, reduced to €100.

From the actions carried out in the present procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

First: The entity LOCAL VERTICALS, S.L. with CIF: B02789808, is the owner of the website, <https://www.motorpasion.com>

Second: On 09/01/24, the General Subdirectorate of Data Inspection accessed the website in question, confirming that personal data of users could be entered through the existing registration form in the dropdown menu located at the top left. Before being able to submit the form and register, it was necessary to click on the option "I have read and accepted the <>."

It was confirmed that if the option <> indicated in the registration form is clicked, the website displays a new page, ***URL.1 where, among other information, the following appears:

"Data of the holder:

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Address:

(...)

Email:

(...)

Commercial Registry:

(...)

Privacy Policy: At ***COMPANY.1, we are aware of the importance of privacy and data protection for our users. For this reason, at ***COMPANY.1, we have conducted an analysis of the processing activities carried out as well as the inherent risks to establish policies and measures aimed at protecting the personal information that we may collect from our users. (...)

Third: It has been established that, at the time of collecting the personal data of users through the form, the website did not provide information regarding the actual data controller, nor is there any link or direct reference that redirects the user to the "Privacy Policy" or "Legal Notice" where such information can be obtained.

LEGAL GROUNDS

I.

Competence and applicable regulations

In accordance with the provisions of Articles 58.2 and 60 of the GDPR and the provisions established in Articles 47, 48.1, 64.2, and 68.1 and 68.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict

them, subsidiarily by the general rules on administrative procedures."

II.

Response to the allegations presented regarding the proposed resolution

First: The party being claimed against begins its written allegations to the proposed resolution by arguing that the sanctioning file is initiated due to the total lack of information regarding the privacy policy, but it was demonstrated that there was indeed a link to the privacy policy of the website, located in the same menu where the link for a user to register can be found. However, the instructor reiterates in the proposed resolution that there is no link on the main page of the website that allows the user to access the Privacy Policy of the website.

Well, to respond to these allegations, we must start by recalling that Article 13 of the GDPR details the information that the data controller must provide to the data subject precisely at the moment the data is collected directly from them. That is, if the data is obtained directly from the data subject through a data collection form, as is the case, it must be...

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to make the information available to them at the precise moment it is requested and prior to their registration, as established in the aforementioned article:

"1. When personal data relating to an interested party is obtained, the data controller shall provide all the information indicated below at the time the data is obtained: a) the identity and contact details of the controller and, where applicable, of their representative;...

In the case at hand, it was confirmed and recorded on 09/01/24 that the user wishing to register on the website <https://www.motorpasion.com> had to first check the option "_I have read and accepted the <>."

That is, they were obliged to read and accept the "Privacy and Participation Policy" indicated on the page, but upon clicking the link (<>) the website redirected the user to a new page ***URL.1, belonging to the website ***URL.2, where, in addition to a different "Privacy Policy," the identity of a different data controller was provided, which had nothing to do with the claimed entity: "***COMPANY.1."

Therefore, it is evident that the controller of the website <https://www.motorpasion.com>, when obtaining the personal data of users registering on it through the form and requiring them to check the box "_I have read and accepted the <>," was in violation of the provisions of Article 13 of the GDPR as it provided misleading information that did not correspond to reality, and this is even acknowledged by the respondent in the document submitted to this Agency on 08/04/24, in response to the proposed resolution: "(...) But for reasons that this party does not know and has not been able to reproduce, at the moment the instructor entered the website and clicked on that link in the registration form, it continued to redirect to the old link (...)"

Regarding the allegations made by the respondent, indicating that they proved that there was indeed a link to the true privacy policy of the website, located in the same menu where the link for a user to register is found, we must first indicate that, regardless of whether such a link may exist, the truth is that it is situated on a second layer, not directly accessible as it is within the "menu" located at the top right of the main website, requiring a subsequent click on the corresponding link.

In this regard, Recital (58) of the GDPR states:

"The principle of transparency requires that all information addressed to the public or to the interested party be concise, easily accessible, and easy to understand, and that clear and plain language be used, and, where appropriate, be visualized. This information could be provided electronically, for example, when addressed to the public, via a website. This is particularly relevant in situations where the proliferation of agents and the technological complexity of practice make it difficult for the interested party to know and understand whether personal data concerning them is being collected, by whom, and for what purpose..."

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All of this is captured in Article 12.1 of the GDPR, which states that the information provided to the data subject must be given “in a concise, transparent, intelligible, and easily accessible form (...)”. (the underlining is from the Agency).

Moreover, the Guidelines on Transparency under Regulation (EU) 2016/679 issued by the ARTICLE 29 DATA PROTECTION WORKING PARTY (WP29) establish, in point 11, the following:

“The element ‘easily accessible’ implies that the data subject should not have to search for the information, but should be able to immediately recognize where and how to access this information, for example, by providing it directly, including a link to it, clearly pointing it out, or in the form of a response to a question in plain language (e.g., in a structured multi-layered online privacy statement/notice, in the frequently asked questions section, through contextual pop-ups that are triggered when a data subject fills out an online form, or in an interactive digital context through a dialogue interface, etc. These mechanisms are discussed in more detail below, particularly in sections 33 to 40).

Example: Every organization that maintains a website must publish a privacy statement/notice on the website. On each of the pages of this website, there must be a clearly visible direct link to this privacy statement/notice under a commonly used term (such as ‘Privacy’, ‘Privacy Policy’, or ‘Data Protection Notice’). The placement or color combinations that make a text or link less visible or difficult to find on a webpage are not considered easily accessible. (...)

Therefore, WP29 recommends, as a good practice, that a link to the privacy statement/notice be provided at the point of collection of personal data in an online context, or that this information be available on the same page where personal data is collected. It is evident that this was not the case in our situation, as the page where the personal data of users was obtained did not provide the information required in Article 13 of the GDPR, since the existing link in the form that the user had to click before submitting the form with their personal data redirected them to a “Privacy Policy” that had no relation to the actual information that should have been provided to the user.

In conclusion, information about the processing of personal data must be provided to the data subject in a clear, concise, and easily accessible manner, considering that the ultimate goal is for the user to make informed decisions about the use of their personal data. WP29’s position is to recommend that when a data controller maintains a website (or operates, wholly or partly, through it), the use of structured multi-layered privacy statements/notices be employed, allowing website visitors to navigate to the specific aspects of the relevant statement/notice that interest them the most. However, all information directed to data subjects must be available in one place or in a single document, and this was not fulfilled in our case, as such information was accessible through a secondary link that was not directly visible to the user in the registration form, nor even through a link.

permanently on the web, but indirectly, first displaying a menu and then selecting the corresponding option from that menu, as indicated in the resolution proposal when it was stated that: “the website did not provide information regarding the actual data controller, nor was there any link or direct connection that redirected the user to the ‘Privacy Policy’ or ‘Legal Notice’ where such information could be obtained.”

In summary, regardless of whether the correct ‘Privacy Policy’ appears on the “home” page or not, the fact is that the link provided upon completing the data in the registration form led to an incorrect privacy policy, and this is precisely what is being sanctioned in the present file.

Second: Regarding the application in this case of the “principle of culpability” alleged by the respondent in point “two” of their writing, it should be noted that it is true that this principle also governs in matters of administrative infractions, as declared repeatedly by the Constitutional Court (TC), and that objective or no-fault liability is not applicable in the administrative sanctioning sphere, whereby the

possibility of imposing sanctions solely based on the result is excluded, without demonstrating a minimum level of culpability even in terms of mere negligence (SSTC 76/1990 and 164/2005), requiring that the imposition of the sanction be based on the requirement of the subjective element of fault, to guarantee the principle of responsibility and the right to a sanctioning procedure with all guarantees (STC 129/2003, of June 20, and STS of March 1, 2012, Rec 1298/2009).

Certainly, the principle of culpability, provided for in Article 130.1 of Law 30/1992, of November 26, on the Legal Regime of Public Administrations and the Common Administrative Procedure, states that only those responsible for acts constituting administrative infractions can be sanctioned, even in terms of simple non-compliance. Obviously, this implies that such responsibility can only be demanded in terms of intent or fault, excluding from the realm of sanctioning administrative law the so-called "objective liability," and understanding the culpable title to include recklessness, negligence, or inexcusable ignorance.

This "simple non-compliance" cannot therefore be understood as the admission in sanctioning administrative law of objective liability, as the majority jurisprudence of our Supreme Court (starting from its rulings of January 24 and 25 and May 9, 1983) and the doctrine of the Constitutional Court (after its STC 76/1990) highlight that the principle of culpability, even without explicit recognition in the Constitution, is inferred from the principles of legality and prohibition of excess (Article 25.1 CE), or from the very requirements inherent to a Rule of Law, thus requiring the existence of intent or fault (in this sense, STS of January 21, 2011, Rec 598/2008).

However, the way of attributing responsibility to legal entities does not correspond with the forms of culpability that are attributable to human conduct, whether intentional or negligent. Thus, in the case of infractions committed by legal entities, although the element of culpability must be present, it necessarily applies differently than it does with natural persons. As we have, according to STC 246/1991:

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" (...) this distinct construction of the imputability of the authorship of the infringement to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the norms to which they are subject. The capacity for infringement and, therefore, direct reproachability that derives from the legal good protected by the norm that is infringed and the necessity for that protection to be truly effective, and the risk that, consequently, must be assumed by the legal entity that is subject to compliance with that norm."

(In this sense, see STS of November 24, 2011, Rec 258/2009).

To the above, it should be added, following the judgment of January 23, 1998, partially transcribed in the SSTS of October 9, 2009, Rec 5285/2005, and of October 23, 2010, Rec 1067/2006, that:

"although the culpability of the conduct must also be subject to proof, it must be considered in terms of the assumption of the corresponding burden, that ordinarily the volitional and cognitive elements necessary to assess it form part of the proven typical conduct, and that their exclusion requires that the absence of such elements be accredited, or in its normative aspect, that the diligence that was required by the one who claims its non-existence has been employed; it is not enough, in summary, for exculpation against a typically unlawful behavior to invoke the absence of fault."

In the case at hand, the existence of unlawfulness and culpability in the infringing conduct of the entity responsible for the processing of personal data is evident, as the data controller decides on the purpose, content, and use, and therefore has the obligation to act with greater diligence when providing the necessary information to the user when collecting their personal data. This condition imposes a special duty of diligence when carrying out the processing of personal data, regarding compliance with the duties established by data protection legislation to guarantee the fundamental rights and public freedoms of individuals; SAN 392/2015, of November 17.

In Judgment 292/2000, of November 30, the TC considers as an autonomous and independent right

the power of disposition and control that a person has over their personal data, which enables them to decide which of those data to provide to a third party, or which this third party may collect, and which also allows the individual to know who possesses that personal data and for what purpose it will be used, being able to oppose that possession or use if they so wish.

Therefore, the conduct of the respondent is considered to respond to the title of fault, as a custodian of personal data and thus should have been especially diligent and careful in its processing. That is to say, from the perspective of culpability, we are faced with a surmountable error since, with the application of appropriate technical and organizational measures, the irregularity on the website under its ownership, providing incorrect information about the processing of personal data could have been easily avoided.

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In this regard, Recital 74 of the GDPR states the following:

The responsibility of the data controller must be established for any processing of personal data carried out by themselves or on their behalf. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons.

Furthermore, Recital 79 states:

The protection of the rights and freedoms of data subjects, as well as the responsibility of controllers and processors, including with respect to the supervision by the supervisory authorities and the measures adopted by them, requires a clear allocation of responsibilities under this Regulation, including cases where a controller determines the purposes and means of processing jointly with other controllers, or where processing is carried out on behalf of a controller.

Therefore, in the case at hand, it is evident that, apart from the unlawful and typical conduct of the respondent, there is also culpability since, through actions or omissions attributable to the website owner, incorrect information was provided regarding the processing of personal data to users at the time they registered on their website.

Regarding the respondent's statement that "(...) the instructor, upon checking the link, may have loaded the previous version of the website still in the cache of their browser (...)", it should be stated that, as indicated in the conducted investigation, the verification carried out in the "Privacy Policy" of the website was done after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website in question, making it impossible to consider this possibility, as it is not feasible to recover the previous version installed on the website once the cache of the terminal equipment has been cleared.

Third: The respondent states in point "three" of their written allegations that from the same complaint, the AEPD initiates two distinct sanctioning procedures with different objects and facts, asserting that the present procedure diverges from the facts of the initially raised complaint.

Regarding this point, it should be recalled that the complaint submitted on 26/09/23 referred to several irregularities on the website <https://www.motorpasion.com> that were managed by different legal norms. Thus, in that complaint, irregularities in their Cookie Policy were reported: "TO THE DIRECTOR OF THE AEPD AFTER THE LONG TIME ELAPSED SINCE MY FIRST COMPLAINT, THE WEBSITE CONTINUES TO STORE COOKIES, ...", with its management regulated under the LSSI, leading to the initiation of file PS/0040/2024 based on this.

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But it was also indicated in this complaint dated 26/09/23 the existence of irregularities regarding the processing of personal data: "...AND NO LEGAL NOTICE APPEARS, WITH THE INFORMATION THAT SHOULD BE INCLUDED," with its management regulated under the GDPR and the LOPDGDD, thus opening the present sanctioning procedure PS/0546/2023.

Therefore, since the irregularities indicated in the complaint dated 26/09/23 are managed by different regulations, they have given rise to different sanctioning files. PS/0040/2024 to clarify the irregularities indicated regarding the "Cookie Policy" of the website in question and PS/0543/2023 to clarify the irregularities indicated regarding the "Privacy Policies."

Fourth: Among the requests made by the entity being complained against, in point "three," it requests that in the event that this Agency dismisses the grounds for filing, it substitutes the sanction with a warning or, failing that, reduces the sanction to €100.

Well, the present sanctioning procedure was initiated for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, and in section "V" of the initiation document of the file, it was intended to clarify the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, considering it appropriate to include the aggravating criterion established in its subsection e). That is, "Any previous infringement committed by the controller or the processor" since there is a resolution dated 10/07/23 issued in the sanctioning procedure PS/00086/2023 where the entity was sanctioned for the violation, also of Article 13 of the GDPR, all motivated in the Legal Basis "V."

Therefore, it is not possible, in the present procedure, to attend to the request for reduction of the sanction.

III.

Information that must be provided to the interested party

Article 13 of the GDPR establishes the information that must be provided to the interested party when the data is collected directly from them:

"1. When personal data relating to an interested party is obtained from them, the data controller, at the time of obtaining this data, shall provide: a) the identity and contact details of the controller and, where applicable, of their representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing; d) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party; e) the recipients or categories of recipients of the personal data, where applicable; f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second subparagraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the fact that they have been provided.

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2. In addition to the information mentioned in section 1, the data controller shall provide the data subject, at the time when personal data is obtained, with the following necessary information to ensure fair and transparent data processing:

- a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and its rectification or erasure, or the restriction of processing, or to object to processing, as well as the right to data portability;
- c) when processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;

- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

In the case at hand, it was found that on the website <https://www.motorpasion.com>, personal data of users could be entered through the registration form available in the dropdown menu located at the top left. Before being able to submit the form and register, the option “_I have read and accepted the <>” had to be clicked. It was noted that if the option <> indicated in the registration form was clicked, the website displayed a new page, ***URL.1, where, among other information, the details of another legal entity appeared that has no relation whatsoever, in terms of data protection, with the actual owner of the website. It was also noted that at the time of collecting personal data from users through the form, no information regarding the actual data controller was provided anywhere on the form page, nor was there any other link or direct reference that redirected the user to the true “Privacy Policy” or “Legal Notice.”

IV.

Classification and qualification of the infringement of Article 13 of the GDPR

The aforementioned infringement of Article 13 of the GDPR constitutes the commission of the infringements classified in Article 83(5) of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“The infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount: (...) b) the rights of the data subjects under Articles 12 to 22; (...)”

For the purposes of the limitation period, Article 74 “Minor infringements” of the LOPDGDD indicates: “Minor infringements shall be considered and shall be subject to a limitation period of one year for the remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and, in particular, the following:

a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679. (...)”

V.

Sanction for the infringement of Article 13 of the GDPR

For the purposes of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to grade the sanction to be imposed according to the following criteria established in Article 83(2) of the GDPR: As aggravating factors:

- Any previous infringement committed by the controller or the processor (paragraph e). In this regard, it should be noted that the resolution dated 10/07/23 issued in the sanctioning procedure PS/00086/2023 sanctioned the entity for the violation of Article 13 of the GDPR, regarding the deficiencies observed in its “Privacy Policy” of the website in question, and in which the entity, invoking Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), proceeded to pay the fine making use of the two reductions provided for in the initiation agreement of said file, which involved the acknowledgment of responsibility.

For the purposes of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available, it is considered that the balance of the circumstances contemplated in Article 83(2) of the GDPR, regarding the infringement committed by violating the provisions of Article 13 of the GDPR, allows for the imposition of a fine of 10,000 euros (ten thousand euros).

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Imposition of measures for the infringement of Article 13 of the GDPR

In this case, the responsible party for the website in question, <https://www.motorpasion.com>, is required to take the necessary measures within one month to adapt the user registration form on their website to current regulations, by modifying the link to the existing "Privacy Policy" and directing it to the actual "Privacy Policy" or "legal notice" of the website, in accordance with the provisions of Article 13 of the GDPR.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS RESOLVED

FIRST: TO IMPOSE on the entity LOCAL VERTICALS, S.L. with CIF: B02789808, the owner of the website, <https://www.motorpasion.com>, for the infringement of Article 13 of the GDPR, a fine of 10,000 euros (ten thousand euros).

SECOND: TO ORDER the entity LOCAL VERTICALS, S.L. to take the necessary corrective measures within one month to adapt its actions to the personal data protection regulations regarding Article 13 of the GDPR, as well as to inform this Agency within the same period about the measures adopted.

THIRD: TO NOTIFY this resolution to the entity LOCAL VERTICALS, S.L.

FOURTH: TO WARN the sanctioned party that the imposed fine must be paid once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at Banco CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 82 of Law 62/2003, of December 30, on fiscal, administrative, and social order measures, this Resolution will be made public once it has been notified to the interested parties. The publication will be carried out in accordance with the provisions of Instruction 1/2004, of December 22, of the Spanish Agency for Data Protection regarding the publication of its Resolutions.

Against this resolution, which concludes the administrative process, and in accordance with the provisions of Articles 112 and 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm

resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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